Must we label what our AI produces?

Business: Example Electrical Ltd Date: 23 October 2026

Sources checked: 19 October 2026

Yes. At least one duty of Article 50 applies to you now.

Duties found: limited disclosure of AI content in artistic or fictional works (Art. 50(4), first subparagraph); machine-readable marking of generated content (Art. 50(2)).

What you told us

Role	We develop AI systems or place them on the market under our own name
Uses	We generate or edit images, audio or video that look like real people, places or events
Artistic work	Yes, evidently artistic or fictional
On the market before 2 August 2026	No, or not yet on the market

Findings

FACT Article 50 of the AI Act has applied since 2 August 2026. Paragraphs 1 and 2 address providers, paragraphs 3 and 4 deployers. A deployer is anyone using an AI system under its authority, except in a personal non-professional activity. Where the deployer is a company, its employees acting under its instructions are not separate deployers; the company is.

→ Regulation (EU) 2024/1689, Art. 3(3) and (4), Art. 50, Art. 113, consolidated version of 27 July 2026 · EUR-Lex · retrieved 2026-10-19; Guidelines C(2026) 5054 final, points 12 to 16 · retrieved 2026-10-19

FACT A deployer that generates or manipulates image, audio or video content constituting a deep fake discloses that the content has been artificially generated or manipulated. A deep fake is AI-generated or manipulated content that resembles existing persons, objects, places, entities or events and would falsely appear to a person to be authentic or truthful.

→ Regulation (EU) 2024/1689, Art. 50(4), first subparagraph, and Art. 3(60) · retrieved 2026-10-19

■ FACT Where the content forms part of an evidently artistic, creative, satirical, fictional or analogous work, the duty is limited to disclosing the existence of such generated or manipulated content in an appropriate manner that does not hamper the display or enjoyment of the work.

→ Regulation (EU) 2024/1689, Art. 50(4), first subparagraph, and Art. 3(60) · retrieved 2026-10-19

◆ INTERPRETATION A photo-like AI image of a technician in front of a switch cabinet on a website is a deep fake, because it shows a real-looking scene that never happened; a stylised graphic of a lightning bolt is not. Advertising usually cannot rely on the artistic exception.

■ FACT Providers of AI systems that generate synthetic audio, image, video or text content ensure that the outputs are marked in a machine-readable format and detectable as artificially generated or manipulated. Providers of such systems placed on the market before 2 August 2026 have until 2 December 2026 for this marking duty; the guidelines confirm that the transition concerns only the marking duty, not the notice for interacting systems.

→ Regulation (EU) 2024/1689, Art. 50(2) and Art. 111(4), the latter inserted by Regulation (EU) 2026/1744, Art. 1, point (39) · retrieved 2026-10-18 and 2026-10-19; Guidelines C(2026) 5054 final, point 153 · retrieved 2026-10-19

■ FACT The information is provided in a clear and distinguishable manner at the latest at the time of the first interaction or exposure, and conforms to the applicable accessibility requirements.

→ Regulation (EU) 2024/1689, Art. 50(5) · retrieved 2026-10-19

■ FACT Fines for breaches of the transparency obligations of Article 50 go up to EUR 15 000 000 or 3 % of the total worldwide annual turnover, whichever is higher; for SMEs the lower of the two amounts applies.

→ Regulation (EU) 2024/1689, Art. 99(4), point (g), and Art. 99(6) · retrieved 2026-10-19

■ FACT Labelling does not make a use lawful: paragraphs 1 to 4 are without prejudice to other transparency obligations in Union or national law, and data protection, competition law, personality rights and copyright remain unaffected.

→ Regulation (EU) 2024/1689, Art. 50(6) · retrieved 2026-10-19

◐ UNCERTAIN Which authority supervises Article 50 is national law. Germany has named the Federal Network Agency (Act of 22 July 2026, in force since 29 July 2026). For Austria, as of 19 October 2026, no official source names the market surveillance authority; the duties apply regardless, because the Regulation is directly applicable.

→ KI-Marktüberwachungs- und Innovationsförderungsgesetz of 22 July 2026, BGBl. 2026 I No. 223, § 2(1) · gesetze-im-internet.de · retrieved 2026-10-19; Datenschutzbehörde (Austria), page on artificial intelligence and data protection · dsb.gv.at · retrieved 2026-10-19

What to do next

- [ ] For artistic or fictional works: disclose the existence of AI content in a way that does not hamper the work, for example in the credits or the caption.
- [ ] Implement and document the machine-readable marking of outputs before you place the system on the market, or now if it is already on the market since 2 August 2026.
- [ ] Write the result into your tool register or labelling checklist with today's date, and set a review date; a new tool or a new kind of use is the occasion to ask the questions again.

The labelling checklist (D5) of the AI Policy Toolkit records this per tool and per publication, with the provider evidence and the key dates prefilled.

Sources

1. Regulation (EU) 2024/1689 of 13 June 2024 (AI Act), consolidated version of 27 July 2026: Art. 3(3), (4) and (60), Art. 4, Art. 5(1)(f), Art. 50, Art. 99(4)(g) and (6), Art. 111(4), Art. 113. eur-lex.europa.eu · retrieved 2026-10-19.
2. Regulation (EU) 2026/1744 of 8 July 2026 (Digital Omnibus on AI), in force since 27 July 2026: Art. 1, points (20) and (39). eur-lex.europa.eu/eli/reg/2026/1744/oj · retrieved 2026-10-18.
3. European Commission, Guidelines on the implementation of the transparency obligations for certain AI systems under Article 50, C(2026) 5054 final of 20 July 2026: points 12 to 16, 38, 131, 133 to 138, 153 and 154. digital-strategy.ec.europa.eu · retrieved 2026-10-19. Guidance, not law.
4. Germany: KI-Marktüberwachungs- und Innovationsförderungsgesetz of 22 July 2026, BGBl. 2026 I No. 223, § 2(1). gesetze-im-internet.de · retrieved 2026-10-19.
5. Austria: Datenschutzbehörde, page on artificial intelligence and data protection, undated. dsb.gv.at · retrieved 2026-10-19.

This memo is information based on the sources listed, generated on 23 October 2026 from the answers above. It is not legal advice and decides nothing on behalf of your business. Every statement carries its marker, every source its retrieval date; check the sources again before you rely on a date.